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Foods With Red Dye 40 That Is Banned in California

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Long-standing calls for Red Dye No. 40 to be restricted nationwide have reared up after the Food and Drug Administration (FDA)'s decision to ban Red Dye No. 3—Newsweek has rounded up some popular foods that contain it.

What Is Red Dye No. 40?

Red No. 40 is a chemical known as Allura Red AC (E129 in Europe) that is often used in products, such as chewing gum and frosting, to help dissolve the dye and prevent the colors from bleeding.

In 2007, research commissioned by the United Kingdom's Food Standards Agency found links between Red No. 40 and hyperactivity and neurobehavioral issues in children.

While celebrating the FDA's Red Dye No. 3 decision on Wednesday, Representative Anna Paulina Luna, a Republican from Florida, wrote on X, formerly Twitter: "Now it's time to ban Red 40, Yellow 5/6, High-Fructose Corn Syrup, and all trash in our food."

This may be more likely than ever if Donald Trump's pick for health secretary, Robert F. Kennedy Jr., gets confirmed by the Senate as he has long spoken out against the use of dyes in food.

However, it is important to note that both the FDA and the World Health Organization list Red No. 40 as a "low concern," arguing that most people do not consume enough of it to be a real problem. Newsweek has contacted the FDA, via email, for comment.

Some Foods Have Red Dye No. 40 in Them

1. Kellogg's Rice Krispies Cereal Red & Blue

2. NERDS Candy

3. Multiple Pop-Tarts flavors, including Frosted Apple Cinnamon Apple Jacks and Frosted Confetti Cupcake

4. Pringles Crisps Scorchin' Chili & Lime

5. Multiple Ferrara Candy Company candies, including Bob's Sweet Stripes, Soft Peppermint Candy

6. Joybrite Candy Canes Peppermint

7. Nice! Soft Puffs Peppermint

8. Betty Crocker Red, White & Blue Sprinkles

9. Now & Later Candy flavors, including cherry

10. Congelli strawberry gelatin dessert

Where Is Red Dye 40 Banned?

California banned Red No. 40, along with Yellow 5, Yellow 6, Blue 1, Blue 2 and Green 3, in school food last year, and there are calls for the federal government to follow suit.

Assemblymember Jesse Gabriel (D-Encino), who authored the law, called the ingredients "dangerous chemicals that can harm their bodies and interfere with their ability to learn."

The U.K. and Europe have not banned the dye, but they have added warning labels on food containing them. These state that the dye "may have an adverse effect on activity and attention in children."

Red Dye No. 40 has not been evaluated for health risks since 1971, according to the Environmental Working Group (EWG).

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